1051

F

FAR EASTERN DEPARTMENT

JAPAN

FE 1022/424

FROM: Asst. R. Ross, C.R.O.
To Asst. L. P. Scott,

No. F 2591/72
Dated 13th. April, 51
Received in Registry 22/5/51

Cabs material for a reply to N.Z. House regarding conditions placed on the cession of South Sakhalin and the Kuriles to the Soviet Union

REFERENCES

92550

(Printed)

(How disposed of)

Aft) R. Ross, C.R.O. 23 May

(Action completed)

(Index)

MINUTES

See within

After
27.

39451

1051

F

FAR EASTERN DEPARTMENT

JAPAN

2

FE 1022/424

FROM: Amb. R. Ross, C.R.O. to Amb. E. Plaist,

No. F 2591/72

Dated 13th. April, 51

Received in Registry— 22/5/51

Gives material for a reply to M.Z. House regarding conditions placed on the cession of South Sakhalin and the Kuriles to the Soviet Union

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See within

AHM
27/5.

(Print)

(How disposed of)

Aft) A. Ross, C.R.O. 23 May.

(Action completed)

(Index)

39451

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Minutes.

I submit a revised draft.

Nothing to be Written in this Margin.

Nothing to be Written in this Margin.

3

Minutes.

I submit a revised draft.

C.A.S. 21.V.

Northern Dept.

N. Eastern Affairs.

C.A.S. 21.V.

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COMMONWEALTH RELATIONS OFFICE

DOWNING STREET

LONDON S.W.1

WHitehall 2323
Ext.
Your reference :
Please quote in reply: F.2591/72

23rd April, 1951.

FJ 1022/624

Dear Peter,

New Zealand House have written to us about the provisions in the Japanese Peace Treaty for South Sakhalin and the Kurile Islands.

2. They said that New Zealand shares the American view that before the Soviet Union is confirmed in its title to the Kuriles there should be an agreed delimitation of their area, which would provide for the evacuation by the Soviet Union of the groups which Japan is legitimately entitled to retain as the "minor islands" mentioned in the Potsdam Declaration.

3. They add, however, that they have serious doubts of the wisdom of the suggestion in the United States reply to the United Kingdom Aide Memoire that the cession of South Sakhalin and the Kurile Islands should be dependent on the Soviet Union becoming a party to the Treaty (which is also the effect of Article 19 of the United States Draft Peace Treaty).

4. I should be very glad if you could give me the material for an answer to the point raised by New Zealand House in paragraph 3.

Yours sincerely,

Robin Kerr.

C. P. SCOTT, ESQ.,
JAPANESE DEPARTMENT,
FOREIGN OFFICE.

4

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Robin Ross.

C. P. SCOTT, ESQ.,
JAPANESE DEPARTMENT,
FOREIGN OFFICE.

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Registry
No. FJ 1012/424

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~~Restricted.~~
~~Open.~~

Draft. To;

Mr. Ross,
Commonwealth
Relations Office

From:
Mr. C.P. Scott.

NOTHING TO BE WRITTEN IN THIS MARGIN.

(27754) Wt. 2811—216. 325m. 11/50. G.S. St.

RECEIVED IN DIVISION
22 MAY 1951
No. 23
[illegible]

I am sorry to have been so long in replying to your letter of the 23rd April (F 2591/72) asking for material for a reply if any) about the enquiry you have had from New Zealand House about the disposal of Sakhalin and the Kurile Islands.

If I understand your letter correctly, the New Zealanders wish the Peace Treaty with Japan to provide (a) for an agreed delimitation of the Kurile Islands (b) for the outright cession to Russia of those of the Kurile Islands as it is agreed should go to her, and (c) that these Treaty provisions should become operative whether Russia is a party to the Japanese Treaty or not.

As you know, Ministers have now agreed that the Peace Treaty should contain an Article on the lines of Article 89 of the Italian Peace Treaty which would provides that no State which does not sign or accede to the Treaty is entitled to any benefits under it, a position which is perfectly understood principle of international law of which the New Zealand Government are no doubt aware.

Article 3 of the United Kingdom Draft Treaty (see also Art. 4 of the revised U.S. Draft Treaty) requires Japan to cede South Sakhalin and the Kurile Islands to Russia. ~~If this Article is adopted (Article 4 of the revised United States Draft contains such a provision) the Japanese will be in no doubt as to Allied intentions with respect to these territories.~~

If Russia becomes a party to the Japanese Peace Treaty she will receive South Sakhalin and the Kurile Islands in full sovereignty. ~~(Article 4 of revised United States Draft).~~ The fact that Russia is in occupation of some Islands not generally considered to be part of the Kurile Islands (e.g. the Habomai group) would almost

/certainly

This suggestion seems unsatisfactory for it does not take into account either the fact that Russia has been firmly in possession of the Kurile & some other islands near them for 56 years, nor the principle that treaties are primarily designed for the benefit of the contracting parties & other

Registry
No. FJ 1022/424

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~~Open.~~

Draft. To;

Mr. Ross,
Commonwealth
Relations Office

From:
Mr. C.P. Scott.

NOTHING TO BE WRITTEN IN THIS MARGIN.

(27274) Wt. 22831—216 325m 11/50 G.S. St.

+O

23/2

24/10

I am sorry to have been so long in replying to your letter of the 23rd April (F 2591/72) 5 asking for material for a reply to an ~~about the~~ enquiry you have had from New Zealand House about the disposal of Sakhalin and the Kurile Islands.

If I understand your letter correctly, the New Zealanders wish the Peace Treaty with Japan to provide (a) for an agreed delimitation of the Kurile Islands (b) for the outright cession to Russia of those of the Kurile Islands as it is agreed should go to her, and (c) that these Treaty provisions should ~~be~~ become operative whether Russia is a party to the Japanese Treaty or not.

~~As you know,~~ Ministers have now agreed that the Peace Treaty should contain an Article on the lines of Article 89 of the Italian Peace Treaty which ~~would~~ provides that no State which does not sign or accede to the Treaty is entitled to any benefits under it, ~~This is a well~~ a position which is perfectly normal under ~~understood principle of~~ international law ~~of which~~ the New Zealand Government are no doubt aware.

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/certainly

This suggestion seems unsatisfactory for it does not take into account either the fact that Russia has been firmly in possession of the Kuriles & some of these islands near them for 5½ years ~~not~~ nor the ~~(by)~~ of the principle that treaties are primarily ~~signed~~ drawn up for the benefit of the ~~parties~~ parties & their benefit of the whole world & not

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20 MAY 1951
No. 23
25/5

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certainly give rise to a dispute between her and Japan which would fall to be decided judicially under the Disputes Article of the Treaty. The delimitation of the Kurile Islands would thus automatically come about.

If Russia is not a party to the Japanese Peace Treaty (and the ~~implications~~ indications are that she will not be), it seems very doubtful whether she will be prepared to accept a delimitation of the Kurile Islands written into a Treaty to which she is not a party. For this reason, and because such a provision could not be enforced if Russia were not a party to the Treaty, we should prefer ~~to omit from it any definition of~~ (it seems to me) the Kurile group to remain undefined.

In short, therefore, ~~our present view is~~ we consider that the Japanese Peace Treaty should in terms honour our undertakings in the Livadia Agreement of 1945, ~~which~~ but should prevent Russia from benefiting by it unless she is prepared to make peace with Japan on the same terms as her Allies.

I must emphasize that the above is an official level reply, and I trust that in replying to New Zealand House you will make this clear.

C.H.S.
21.V.

NOTHING TO BE WRITTEN IN THIS MARGIN.

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Secret.
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Open.

1/5c

Draft. letter.

R. Ross, Esq.,
Commonwealth Relations Office.

From:

C. P. Scott.

NOTHING TO BE WRITTEN IN THIS MARGIN.

Thank you for your letter of the 23rd April, (F. 2591/72) about the enquiry you had had from New Zealand House on the disposal of South Sakhalin and the Kurile Islands.

If I understand your letter correctly the New Zealanders wish the Peace Treaty with Japan to provide:

(a) for an agreed delimitation of the Kurile Islands, and

(b) for the out-right cession to Russia of those of the Kurile Islands as it is agreed should go to her.

(c) that these provisions should come into force whether Russia is a party to the Treaty or not.

2. In Article 3 of the U.K. draft treaty Japan is required to cede South Sakhalin and the Kuriles to Russia. If this Article is adopted the Japanese will be in no doubt as to Allied intentions with respect to these territories.

3. If Russia is not a party to the Treaty, (and the indications are that she will not) it seems very unlikely that she will be prepared to agree to a delimination of the Kurile Islands by an independent authority which would almost certainly require her to give up certain islands not generally considered to be part of that group.

~~if this is not [illegible] there would seem to be no reason why the rest of us should exert ourselves to give Russia legal title to the Kurile Islands and South Sakhalin in a Peace Treaty in which she refuses to participate. This may in the future produce friction between the Japanese Government and the Government of the Soviet Union, but it is always open to either side to conclude a Peace Treaty and settle the matter.~~

If necessary we can talk [illegible]

I suggest I am entitled to tell the Dept. this & see what they say. WH 2/5.

N. Ireland Dept.

Sir F. Rockett... writes in a personal letter that [illegible] The passage to which N. Depts. Commonwealth colleagues take [illegible] Kuriles portion square brackets - should not be replaced by sentences saying (a) Russia would not accept a binding arbitration [illegible] by Ks Kuriles in a Peace Treaty (b) we prefer not [illegible] 1975.

(2000) W1 4000-888 300m. 4/60. G.S.L.

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If /

I suggest I am unable to follow this type of thing W.N.S.

Northern Dept.

Sir E. Peckett... writes in a minute of 11th June 1947 that Article 23 of the Treaty of Peace with Italy provides for the cession of the Dodecanese to Greece. The passage to which Mr. Ross's Commonwealth colleague is referring is I think that in which I have put in square brackets - should not be replaced by sentences saying (a) Russia would not accept as binding on her a reference to the Kuriles in a Peace Treaty (b) we prefer not to put pressure on Russia

13/5.

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(29000) Wt. 48888-888 200m. 4/60. G.S.St.

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4. If Russia is a party to the Treaty she will under Article 3 of the U.K. draft receive South Sakhalin and the Kuriles in full sovreignty. The fact that Russia is in occupation of some Islands not generally considered to be part of the Kurile Islands will almost certainly give rise to a dispute between her and Japan which would fall to be decided judicially under the disputes Article of the Treaty. The delimitation of the Kurile Islands would thus automatically come about.

5. I must emphasise that this is an official level reply. Until the present conversations in Washington are finished I am afraid it is impossible to let you have a more authoritative view.

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FOREIGN OFFICE, S.W.1.

(FJ 1022/424)

23rd May, 1951.

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This suggestion seems unsatisfactory for it does not take into account either the fact that the Soviet Union has been firmly in possession of the Kurile and some other islands near them for 5½ years, or the legal principle that treaties are primarily intended for the benefit of the actual parties to them. Ministers have now agreed that the Peace Treaty should contain an Article on the lines of Article 89 of the Italian Peace Treaty which provides that no State which

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R. Ross, Esq., M.B.E.,
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9

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In short, therefore, we consider that the Japanese Peace Treaty should in terms honour our undertakings in the Livadia Agreement of 1945, but should prevent the Soviet Union from benefiting by it unless she is prepared to make peace with Japan on the same terms as her Allies.

I must emphasize that the above is an official level reply, and I trust that in replying to New Zealand House you will make this clear.

(C.P. Scott)

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